**FIRST AMENDMENT TO MULTI-TENANT NET LEASE**

THIS FIRST AMENDMENT TO MULTI-TENANT NET LEASE ("First Amendment") dated effective 11/25, 2025, is between WOODSPEAR PRAIRIE TRAIL, LLC, a Colorado limited liability company, ("Landlord") and TDINDUSTRIES, INC., a Texas corporation, as tenant ("Tenant"), for the 5,118 rentable square feet of space located at 8595 Prairie Trail Drive, Unit B-100, Englewood, Colorado (the "Premises").

**RECITALS**

A. Landlord and Tenant entered into a written Multi-Tenant Net Lease pertaining to the Premises dated July 13, 2021 ("Original Lease"), as amended and supplemented by that certain Supplemental Agreement and Commencement Certificate dated September 20, 2021 ("Commencement Certificate"). Throughout this First Amendment, the Original Lease and Commencement Certificate are collectively referred to as the "Existing Lease."

B. Landlord and Tenant acknowledge and agree that Tenant's name in the Existing Lease contained a scrivener's error. Instead of reading "TD INDUSTRIES, INC., a Texas corporation" it should have read "TDINDUSTRIES, INC., a Texas corporation." All references to Tenant's legal name in the Existing Lease are deemed replaced with "TDINDUSTRIES, INC., a Texas corporation."

C. Landlord and Tenant now desire to amend the Existing Lease to extend its Term in the manner and form set forth in this First Amendment.

Accordingly, Landlord and Tenant agree as follows:

**AGREEMENT**

1. Recitals; Definitions. The Recitals set forth above are true and correct and incorporated into this First Amendment by this reference. Capitalized terms used, but not defined, in this First Amendment retain the respective meanings assigned to each of them in the Original Lease. Terms defined in the preamble and Recitals retain the respective meanings assigned to each of them throughout this First Amendment. All references to "Lease" in the Original Lease are deemed to include the phrase "including all exhibits and addenda, as amended" immediately after such reference.

2. Term. The Lease Term is being extended by thirty-seven (37) months ("Extended Lease Term"). The Extended Lease Term commences October 1, 2026 ("Extended Term Commencement Date") and ends on the Expiration Date. The definition of Expiration Date in Section 1.10 of the Original Lease is deleted and replaced with the following:

1.10 "Expiration Date" means October 31, 2029.

3. Rent. Commencing on the Extended Term Commencement Date, the Base Rent for the Extended Lease Term is as follows, payable in accordance with the applicable provisions of the Lease:

| LEASE YEAR | $ PER SQ. FT. | ANNUAL BASE RENT | MONTHLY INSTALLMENT OF BASE RENT |
|---|---|---|---|
| 10/1/2026 – 10/31/2026 | $ 0.00 | $ 0.00 | $ 0.00 |
| 11/1/2026 – 10/31/2027 | $12.75 | $65,254.56 | $5,437.88 |
| 11/1/2027 – 10/31/2028 | $13.13 | $67,212.12 | $5,601.01 |
| 11/1/2028 – 10/31/2029 | $13.53 | $69,228.48 | $5,769.04 |

Notwithstanding anything in this First Amendment to the contrary, if Tenant is or becomes in Default, any amount of abated Base Rent described in this First Amendment becomes immediately due and payable from Tenant to Landlord. Tenant shall pay to Landlord such abated Base Rent then owing at the same rate as the Base Rent from November 1, 2026 through October 31, 2027 of the Extended Lease Term.

4. Extension Options. Tenant will have two (2) options to extend the Term of this Lease beyond the Extended Lease Term ("Extension Option"), when exercised, each option extending the Term for a period of three (3) years (each, the "Extension Period"). The Extension Option is exercisable by Tenant according to the terms and conditions set forth in **Exhibit A**, which is attached and incorporated into this First Amendment by this reference. Each Extension Option is personal to Tenant and may not be assigned by Tenant without Landlord's prior written approval, which may be granted or withheld in Landlord's sole subjective discretion; provided, however, the Extension Option may be assigned by Tenant without Landlord's consent if such assignment occurs pursuant to Section 13.1(b) of the Lease. Any purported assignment of the Extension Options to the contrary of the terms and conditions of this Section is void.

5. Condition of Premises. Tenant acknowledges and agrees that it is in possession of the Premises and accepts the Premises in its current "as-is" condition. Tenant acknowledges and agrees that Landlord is not obligated to provide or pay for any work or services related to the improvement of the Premises, and Landlord has not made any representation or warranty regarding the condition of the Premises.

6. Holdover. Article 26 of the Original Lease is hereby deleted in its entirety and replaced with the following:

> "**26. HOLDOVER.** Tenant has no right to retain possession of the Premises or any part thereof beyond the Expiration Date or earlier termination of this Lease. In the event that Tenant holds over in violation of this Article 26, such holding over in itself shall not constitute a renewal or extension of this Lease, but in such event it will be deemed to be occupying the Premises as a tenant from month-to-month, subject to all the covenants of this Lease to the extent that they can be applied to a month-to-month tenancy, except that the Base Rent payable from and after the time of the expiration or earlier termination of this Lease shall

be increased to one hundred fifty percent (150%) of the Base Rent applicable during the month immediately preceding such expiration or earlier termination. Nothing contained herein shall be construed as a consent by Landlord to any holding over by Tenant."

7. Relocation. Section 46, **RELOCATION OF PREMISES** set forth in the Original Lease, is hereby deleted in its entirety, and is of no further force or effect.

8. Right of First Offer on Available Adjacent Space. Tenant shall have a first right of offer to lease additional space in the Building that abuts the Premises and is vacant (or becomes vacant) that is depicted on **Exhibit A** of the Original Lease (the "Additional Space").

a. Conditions. Tenant's right of first offer contained in this Section, is subject to the following conditions which must be met:

i. This right of first offer is subordinate to the rights of:

1. the current tenant in the Additional Space to renew, extend or otherwise negotiate a new lease or extension for the Additional Space;

2. all future tenants which enter into a new lease for such space (as may occur should Tenant not exercise the rights contained in this Section to lease the Additional Space and Landlord then entering into a lease for the Additional Space with another tenant), to renew or extend their leases; and

3. the rights of other tenants in the Building which exist prior to the date of this Lease.

ii. Tenant has not been in Default at any time during the Term;

iii. Tenant has not previously assigned the Lease or sublet more than twenty-five percent (25%) of the Premises;

iv. Landlord has made a good faith determination that Tenant remains creditworthy;

v. Tenant must lease all of the Additional Space offered;

vi. Tenant exercises its option as provided in this Section by delivering to Landlord written notice of its intention containing the material terms included in its offer no later than thirty (30) days after Landlord has notified Tenant that Additional Space is available;

vii. All terms for the lease of the Additional Space shall be upon those terms and conditions as are negotiated in good faith between the parties; and

viii. Tenant executes an addendum, lease amendment, or a new lease for the Additional Space on or before the ninetieth (90th) day after Landlord's receipt of Tenant's notice to lease the Additional Space.

b. Failure to Meet Conditions. If any of the above conditions is not met by the time specified for each condition, if applicable, then this right of first offer will lapse, become void, and be of no further force, and Landlord shall have the right to lease all or any part of the Additional Space to a third party under the same or any other terms and conditions, whether or not such terms and conditions are more or less favorable than those offered to or by Tenant. Time is of the essence for each condition in this Section.

c. No Transfer of Right. This right of first offer to lease the Additional Space is personal to Tenant and is non-transferable and unassignable. Any Assignment of the Lease by Tenant, irrespective of whether Landlord consents to it (or Landlord's consent is not required) renders this right of first offer void.

9. Miscellaneous.

a. Tenant and Landlord each represent and warrant to the other that: (i) it has had no dealings with any person, firm, broker or finder other than Todd Noonan and Buzz Miller of Stream Realty (collectively and individually, "Tenant's Broker") who acted as Tenant's agent in connection with the negotiation of this First Amendment; and (ii) no broker or other person, firm or entity other than said named Tenant's Broker is entitled to any commission or finder's fee in connection with said transaction. Tenant and Landlord do each agree to indemnify, protect, defend and hold the other harmless from and against liability for compensation or charges which may be claimed by any such unnamed broker, finder or other similar party by reason of any dealings or actions of the indemnifying party, including any costs, expenses, and/or reasonable attorneys' fees reasonably incurred with respect thereto. Landlord shall pay Tenant's Broker commissions pursuant to a separate written agreement

b. If there is any conflict between the terms and provisions of this First Amendment and the terms and provisions of the Original Lease, the terms and provisions of this First Amendment shall govern. Except as specifically set forth in this First Amendment, all other provisions of the Original Lease remain in full force and effect and bind the parties according to their respective terms.

c. This First Amendment may be executed by original, facsimile, or scanned PDF signature in one or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

d. The signatories to this First Amendment represent that they have full authority to bind their respective stated party to this First Amendment.

e. The parties hereby irrevocably and unconditionally submit to the non-exclusive personal jurisdiction of the courts of the State of Colorado and the United States District Court for the District of Colorado sitting with jurisdiction over the county in which the Premises is located, and irrevocably and unconditionally stipulate and agree that said courts shall have jurisdiction to hear and finally determine any dispute, claim, controversy, or action arising out of or connected (directly or indirectly) with the Original Lease or this First Amendment. **EACH PARTY FOR ITSELF AFFIRMS THE PROVISIONS OF THE ORIGINAL LEASE, WAIVING THEIR RESPECTIVE RIGHT TO A JURY TRIAL IN ANY ACTION PERTAINING TO THE LEASE.**

f. This First Amendment shall apply to, inure to the benefit of, and shall be binding upon, the parties hereto and their respective legal representatives, successors and assigns, except as otherwise provided herein.

g. The parties have read this First Amendment, and on the advice of counsel they have freely and voluntarily entered into this First Amendment.

h. This First Amendment has been negotiated at arm's length and each party has been represented by legal counsel. Accordingly, any rule of law or legal decision that would require interpretation of any ambiguities in this First Amendment against the party drafting it is not applicable and is waived. The provisions of this First Amendment shall be interpreted in a reasonable manner to affect the intent of the parties and the purpose of this First Amendment.

To evidence the parties' agreement to this First Amendment, they have executed it as of the date set forth in the preamble.

**TENANT:**

TDINDUSTRIES, INC.,
a Texas corporation

Signed by:
By: Ray Lemaster
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Name: Ray Lemaster

Title: Vice President

**LANDLORD:**

WOODSPEAR PRAIRIE TRAIL, LLC,
a Colorado limited liability company

By: [signature]
John A. Woodward, Manager

**EXHIBIT A**
**TO MULTI-TENANT NET LEASE**

**OPTION TO EXTEND**
**(MARKET RENT)**

As additional consideration for the covenants of Tenant under this Lease, Landlord grants to Tenant an option (the "Option") to extend the term of the Lease for two (2) additional consecutive terms of three (3) years (each an "Extension Term"). The Option shall be on the following terms and conditions:

A. If Tenant desires to exercise the Option, Tenant shall deliver Landlord written notice that Tenant desires to exercise the Option not earlier than twelve (12) months' and not later than nine (9) months' prior to the expiration of the Extended Lease Term, or the then current Extension Term, as the case may be ("Tenant's Notice"). Not later than thirty (30) days after receiving Tenant's Notice, Landlord shall give to Tenant written notice of the terms, conditions, and rental rate applicable during the Extension Term, in accordance with Paragraph E below ("Landlord's Notice").

B. Tenant may exercise the Option by delivering written notice to Landlord of such exercise under the terms, conditions and rental rate set forth in Landlord's Notice no later than fifteen (15) days following Tenant's receipt of Landlord's Notice. The parties will then have (15) business days after Tenant's written notice of the exercise of the Option as set forth in this Paragraph B within which to execute an amendment to the Lease setting forth the terms, conditions and rental rate applicable during the respective Extension Term. If the parties fail to execute such an amendment on or before the end of the fifteen (15) business day period, at Landlord's sole election, the Option shall terminate and Tenant shall have no further right to extend the term of the Lease.

D. Unless Landlord is timely notified by Tenant in accordance with Paragraphs A and B above, and the parties execute an amendment as provided in Paragraph B, the Option shall terminate and the Lease shall expire in accordance with its terms, at the end of the Primary Term, or the then current Extension Term, as the case may be.

E. As a condition of Tenant's right to exercise this Option: (i) Tenant shall not be in default under the Lease at the time of Tenant's Notice, the exercise of the Option, or at the time of the commencement of the respective Extension Term; (ii) Tenant shall not have been sent more than two (2) letters notifying Tenant of non-compliance with the terms and conditions of the Lease during Tenant's tenancy; and (iii) Tenant shall not have subleased more than 25% of the premises or assigned its interest under the Lease at the time of exercise of the Option or at the time of the commencement of the Extension Term.

E. This Option shall be upon the terms and conditions on which Landlord is then willing to lease space in the Building Complex to third parties, and the rental to be paid by Tenant to Landlord during the first twelve (12) months of the respective Extension Term and subsequent escalations shall be the rate which Landlord would quote to third parties for space comparable to the Premises, if it were to become available for leasing, for a lease term scheduled to commence at the time of commencement of the Extension Term, but in no event shall the rental rate be less than the rent which Tenant is paying immediately prior to the commencement of the respective Extension Term. Such terms and conditions may include, among other things, rent escalations, expense pass-through and other matters then included in Landlord's then standard lease form for the Building Complex which it uses for the leasing of space to third parties.

F. After the exercise of the Options above described, there shall be no further rights on the part of Tenant to extend the Term of the Lease. Proper exercise of the preceding Option for the first Extension Term shall be a condition precedent to the exercise of the Option for any later Extension Term.

G. The Option shall apply to all space under the Lease at the time the respective Extension Term is due to commence, and Tenant may not elect to extend the Term of the Lease as to only a portion of such space.

To evidence the parties' agreement to this Option to Extend (Market Rent), they have executed it as of the 11 day of November, 2025

**LANDLORD**

WOODSPEAR PRAIRIE TRAIL, LLC, a Colorado limited liability company

By: ______________________
John A. Woodward, Manager

**TENANT**

TDINDUSTRIES, INC.,
a Texas corporation

Signed by:

By: Ray Lemaster
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Name: Ray Lemaster

Title: Vice President